

Court No. - 3

Case :- WRIT - C No. - 19868 of 2022

Petitioner :- Mohit Tiwari

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Ram Mohan

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Shri Baleshwar Chaturvedi, learned counsel for the respondent no.2.

2. This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in nature of certiorari quashing the impugned notices dated 13.07.2021 and 28.8.2021 (Annexure Nos.1 & 2 to the writ petition) issued by respondent no.2, amounting to Rs.24,381/- + others."

3. Learned counsel for the respondent no.2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the Executive Engineer concerned within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the Executive Engineer in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 1.8.2022

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